

## 26NNCV00756 26NNCV00756

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-13

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Case Number: 26NNCV00756 Hearing Date: August 13, 2026 Dept: E

Case No:

26NNCV00756

Hearing Date: 08/13/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: RIHONG LIN v. SOTHEA R. PRAK

TENTATIVE RULING ON DEMURRER

PROCEDURAL

Moving Party: Defendant, Sothea R. Prak

Responding Party: Plaintiff, Rihong Lin

Moving Papers: Demurrer;

Meet and Confer Declaration

Opposition Papers: Opposition

Reply Papers: No reply

submitted

RELIEF REQUESTED

Defendant, Sothea R. Prak, demurs to the first cause of action (breach of oral contract) on grounds of: (1) failure to state facts sufficient to constitute a cause of action [CCP § 430.10(e)], and (2) uncertainty/ambiguity/unintelligibility [CCP § 430.10(f)].

Defendant demurs to the second cause of action (unjust enrichment) on grounds of failure to state facts sufficient to constitute a cause of action [CCP § 430.10(e)].

#### MEET & CONFER

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” (CCP, § 430.41(a).)

Failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, Defendant’s counsel sent Plaintiff a letter to meet and confer, and Plaintiff responded via email and explained that there were no matters subject to demurrer in the FAC. (See Nguyen Decl., ¶¶ 2-3.)

At the hearing, the Court would like to hear from the parties as to why they did not meet and confer in person, by telephone, or by video conference as required by 430.41(a); the parties here met and conferred via letter/email.

#### BACKGROUND

The instant action appears to be a dispute involving an alleged loan/loans.

Plaintiff (in pro per), Rihong Lin, filed the initial complaint against Defendant, Sothea R. Prak, on

2/4/2026.

On April 23, 2026, this Court sustained Defendant's demurrer/motion to strike targeted at the original complaint; however, leave to amend was granted.

On 5/18/2026, Plaintiff filed a First Amended Complaint (FAC) that labels the first cause of action as a claim for breach of oral contract and labels the second cause of action as a claim for "Restitution/Unjust Enrichment."

Defendant now demurs to the first cause of action in the FAC on the basis of failure to state facts sufficient to constitute a cause of action and uncertainty/ambiguity/unintelligibility.

Defendant demurs to the second cause of action on grounds of failure to state facts sufficient to constitute a cause of action.

## LEGAL STANDARDS FOR DEMURRERS

### Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law ...." (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with

extraneous matters, states a cause of action. (Hahn, *supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.)

Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

#### Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

#### TENTATIVE RULING DEMURRER

##### Preliminary

Although Defendant's demurrer did not point out formatting issues in Plaintiff's FAC, the Court notes that Plaintiff's FAC does not comply with California

Rules of Court (CRC), rule 2.108, nor does Plaintiff's FAC comply with CRC, rule 2.109.

Since Plaintiff's FAC does not number each page, the Court will primarily cite to allegations in the FAC by citing to paragraph numbers.

#### First Cause of Action – Breach of Oral Contract

Plaintiff's FAC labels the first cause of action as a claim for breach of oral contract.

The paragraphs following the label for breach of oral contract allege:

23. Plaintiff incorporates by reference all prior paragraphs.

24. Plaintiff performed under the parties' oral agreements.

25. Defendant demanded payments beyond Plaintiff's reasonable understanding of the parties' agreements.

26. As a direct and proximate result, Plaintiff suffered damages according to proof at trial.

(FAC, ¶¶  
23-26.)

Defendant demurs to the first cause of action on the basis of failure to state facts sufficient to constitute a cause of action and uncertainty/ambiguity/unintelligibility.

To state a cause of action for breach of contract, Plaintiff must allege "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

When examining paragraphs 23-26 of the FAC, Plaintiff fails to state facts sufficient to constitute a cause of action

for breach of an oral contract.

In paragraphs 23-26, the alleged oral contract, or contracts, Plaintiff is suing on is not identified, and Plaintiff does not allege the element of Defendant's breach.

Further, when reading the allegations that precede the first cause of action, paragraphs 1-22, which are incorporated into the first cause of action, Plaintiff still fails to state facts sufficient to constitute a cause of action for breach of oral contract(s).

Paragraphs 1-22 appear to contain general allegations that are to apply to both causes of action in the FAC.

Although the label for the first cause of action indicates that the first cause of action (FAC ¶¶ 23-26) is for breach of a singular oral contract, the preceding allegations in paragraphs 1-22 seem to indicate that Plaintiff's first cause of action is in fact for breach of two different oral contracts.

It appears that Plaintiff is suing on two different contracts based on the labels of "Primary Dispute" (FAC, ¶¶ 6-14) and "February 2025 Loan" (FAC, ¶¶ 15-19).

To the extent that Plaintiff's first cause of action for breach of oral contract is attempting to allege breaches of two different oral contracts, the "Primary Dispute" contract and the "February 2025 Loan" contract, Plaintiff still fails to allege facts sufficient to constitute a cause of action.

Primary Dispute Contract (FAC, ¶¶ 6-14)

Preceding the FAC's allegations regarding the Primary Dispute contract (FAC, ¶¶ 6-14), the FAC first generally alleges that:

3. Beginning in or about 2018, Plaintiff and Defendant entered into a long-term lending relationship involving multiple oral loan agreements.

4. The parties did not enter into formal written loan agreements. Instead, the parties communicated and performed through telephone conversations, text messages, checks, and electronic transfers, including Zelle.

5. Between approximately 2018 and 2024, Defendant made multiple loans to Plaintiff in varying amounts. Many earlier loans were repaid in principal and interest and are not the primary dispute in this action.

(FAC, ¶¶ 3-5.)

With respect to the Primary Dispute contract, Plaintiff alleges:

6. In or about 2022, Defendant consolidated multiple loan balances and claimed that Plaintiff owed approximately \$80,000.

7. Following Defendant's claim of an \$80,000 balance, Plaintiff continued paying approximately \$3,200 per month in interest, which Defendant represented as approximately 4% monthly interest.

8. Plaintiff made such interest payments from approximately 2022 through 2024 through checks and electronic payments, including Zelle.

9. Thereafter, the parties agreed that Plaintiff would pay \$7,500 per month toward the \$80,000 balance.

10. Plaintiff made approximately eight (8) monthly payments of \$7,500, totaling approximately \$60,000.

11. After Plaintiff made such payments, Defendant claimed Plaintiff still owed approximately \$30,000.

12. Plaintiff requested a reduced payment arrangement based on the remaining disputed balance.

13. Defendant refused Plaintiff's proposed reduced arrangement and instead demanded that Plaintiff either continue paying \$7,500 per month or pay \$1,000 per month in recurring interest.

14. Plaintiff then paid approximately \$1,000 per month in interest for approximately seven (7) months.

(FAC, ¶¶ 6-14.)

To state a cause of action for breach of contract, Plaintiff must allege “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

The Primary Dispute contract here appears to be based on an oral contract.

An oral/verbal contract must allege the substance of its relative terms. (Gautier v. General Tel. Co. (1965) 234 Cal.App.2d 302, 305.)

An oral agreement is unenforceable if it is too uncertain and indefinite to be enforced. (Reeder v. Specialized Loan Servicing LLC (2020) 52 Cal.App.5th 795, 802.)

In Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1176, the Court of Appeal held that appellants did not sufficiently allege the existence of a sufficiently definite contract. (Ibid.)

The Court of Appeal in Daniels explained:

“The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy. ‘ “Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.” ’ ” (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 777, 164 Cal.Rptr.3d 601.) Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite. (Peterson Development Co. v. Torrey Pines Bank (1991) 233 Cal.App.3d 103, 115, 284 Cal.Rptr. 367.)

(Daniels v. Select Portfolio  
Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1174.)

Here, Plaintiff does not allege the  
existence of a sufficiently definite contract.

Although Plaintiff's FAC refers to the  
"Primary Dispute" in ¶¶ 6-14 as if it is a single contract, it is unclear what alleged  
contract this claim is based on, what the amount of the loan is, and what the terms  
for repayment are.

Paragraph 7 of the FAC first appears to  
indicate that the contract claim is based on the allegations on ¶ 7.

"Following Defendant's claim of an  
\$80,000 balance, Plaintiff continued paying approximately \$3,200 per month in  
interest, which Defendant represented as approximately 4% monthly interest."  
(FAC, ¶ 7.)

Then in Paragraph 9 it appears, but it  
is not entirely clear, that the parties may have amended the terms of the  
contract from what was previously alleged in Paragraph 7.

"Thereafter, the parties agreed that  
Plaintiff would pay \$7,500 per month toward the \$80,000 balance." (FAC, ¶ 9.)

Plaintiff then alleges that she made  
eight monthly payments of \$7500, totaling approximately \$60,000; that after  
Plaintiff made such payments, Defendant claimed Plaintiff still owed  
approximately \$30,000. (FAC, ¶¶ 10-11.)

Then in Paragraphs 12-13 it appears,  
but it is not entirely clear, that the parties may have amended the terms of  
the contract a second time.

"Plaintiff requested a reduced payment  
arrangement based on the remaining disputed balance." (FAC, ¶ 12.) "Defendant  
refused Plaintiff's proposed reduced arrangement and instead demanded that  
Plaintiff either continue paying \$7,500 per month or pay \$1,000 per month in

recurring interest.” (Id, ¶ 13.)

Plaintiff then concludes that

“Plaintiff then paid approximately \$1,000 per month in interest for approximately seven (7) months.” (FAC, ¶ 14.)

Here, Plaintiff does not allege the

existence of a sufficiently definite contract because it is entirely uncertain if the loan that was allegedly breached is based on the amount and terms as initially alleged in ¶ 7, or as possibly amended in ¶ 9, or as possibly amended a second time in ¶ 13.

Further, not only do ¶¶ 23-26 fail to

allege breach, ¶¶ 6-14 also fail to sufficiently allege the element of breach.

“The terms of a contract are reasonably

certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy.” (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 777.)

Here, with respect to the Primary

Dispute contract, it is entirely uncertain what the basis for determining the existence of a breach is because it is unclear if Plaintiff is alleging the terms of the contract are based on ¶¶ 7, 9, or 13. Additionally, no matter which paragraph(s) of 7, 9, or 13 are applicable, those paragraphs still don't allege a basis for determining the existence of a breach and for giving an appropriate remedy.

Further, as explained in Levy:

Facts alleging a breach, like all essential elements of a breach of contract cause of action, must be pleaded with specificity. (See generally 4 Witkin, Cal. Procedure (4th ed. 1996) Pleading, § 4495, pp. 585–586; Bentley v. Mountain (1942) 51 Cal.App.2d 95, 98, 124 P.2d 91 [general averments that defendants violated contract insufficient; pleader must allege facts demonstrating breach]; Thompson v. Purdy (1931) 117 Cal.App. 565, 567, 4 P.2d 282, [general averments that defendant failed to perform duties or comply with contract insufficient].)

(Levy v. State Farm Mutual

Automobile Ins. Co. (2007) 150 Cal.App.4th 1, 5-6.)

Here, Plaintiff doesn't even generally aver that Defendant violated/breached the Primary Dispute contract.

Further, aside from ¶¶ 23-26 not explicitly alleging breach, Plaintiff alleges in ¶ 25 that "Defendant demanded payments beyond Plaintiff's reasonable understanding of the parties' agreements." (FAC, ¶ 25.)

Paragraph 25 also fails to allege Defendant's breach of the contract. The Court fails to see what "Plaintiff's reasonable understanding of the parties' agreements" has to do with alleging breach.

February 2025 Loan Contract (FAC, ¶¶ 15-19)

With respect to the February 2025 Loan contract, Plaintiff alleges:

15. In or about February 2025, Defendant provided Plaintiff with approximately \$30,000 in cash.

16. Defendant required Plaintiff to repay approximately \$45,000 on such loan.

17. Under economic pressure and existing debt obligations, Plaintiff accepted such arrangement.

18. Plaintiff then made approximately ten (10) monthly payments of \$3,750.

19. Plaintiff's last payment to Defendant was made in or about December 2025 by check.

(FAC, ¶¶ 15-19.)

With respect to the February 2025 Loan contract, Plaintiff fails to allege facts sufficient to state a cause of action.

The Court of Appeal in Daniels explained:

“The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy. ‘ “Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.” ’ ” (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 777, 164 Cal.Rptr.3d 601.) Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite. (Peterson Development Co. v. Torrey Pines Bank (1991) 233 Cal.App.3d 103, 115, 284 Cal.Rptr. 367.)

(Daniels v. Select Portfolio  
Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1174

Plaintiff fails  
to allege the existence of a sufficiently definite contract because Plaintiff  
fails to provide a basis for determining the existence of a breach and for  
giving an appropriate remedy.

Further,  
Plaintiff fails to allege that Defendant breached the contract.

Aside from  
Plaintiff failing to explicitly allege that Defendant breached the February  
2024 Loan contract, it is entirely unclear what Defendant did to breach the  
contract.

#### TENTATIVE RULING – FIRST CAUSE OF ACTION (BREACH OF ORAL CONTRACT)

Defendant’s demurrer to the first cause of action (breach of oral  
contract) in the FAC, brought on the basis of failure to state facts sufficient  
to constitute a cause of action and uncertainty/ambiguity/unintelligibility, is  
SUSTAINED with LEAVE TO AMEND GRANTED.

#### Second Cause of Action (Restitution/Unjust Enrichment)

Plaintiff’s second cause of action is labeled as a claim for “Restitution/Unjust  
Enrichment.”

Plaintiff's FAC alleges:

27. Plaintiff incorporates by reference all prior paragraphs.

28. Defendant received substantial payments from Plaintiff, including disputed interest payments.

29. Defendant has been unjustly enriched by retaining excessive interest payments.

30. Plaintiff seeks restitution in an amount according to proof at trial.

(FAC, ¶¶  
27-30.)

Defendant demurs to the second cause of action on the basis of failure to state facts sufficient to constitute a cause of action.

Defendant argues that unjust enrichment is not a cause of action under California law.

Defendant cites to Rutherford  
Holdings, LLC:

"Unjust enrichment is not a cause of action, however, or even a remedy, but rather ' " 'a general principle, underlying various legal doctrines and remedies' " .... [Citation.] It is synonymous with restitution.' "

(Rutherford Holdings, LLC v. Plaza  
Del Rey (2014) 223 Cal.App.4th  
221, 231 citing McBride v.  
Boughton (2004) 123 Cal.App.4th  
379, 387.)

In  
opposition, Plaintiff concedes that California decisions often state that unjust enrichment is not a standalone cause of action; however, Plaintiff

argues that those same authorities recognize a claim for unjust enrichment as a quasi-contract claim seeking restitution.

#### TENTATIVE

#### RULING – SECOND CAUSE OF ACTION (UNJUST ENRICHMENT)

When appellate decisions are in conflict on a point, the court exercising inferior jurisdiction must choose between the conflicting decisions. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 456.)

While this Court realizes there is a divide between appellate courts on whether or not unjust enrichment is a cause of action, since this case is at the pleading stage, this Court is inclined to allow Plaintiff an attempt to plead a claim for restitution.

As explained in *Rutherford Holdings, LLC*:

“[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 203, 51 Cal.Rptr.2d 622.) However, “restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.” (*McBride v. Boughton*, supra, 123 Cal.App.4th at p. 388, 20 Cal.Rptr.3d 115.) Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by “alleg[ing in that cause of action] that the express contract is void or was rescinded.” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* supra, at p. 203, 51 Cal.Rptr.2d 622.) A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement. (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389, 137 Cal.Rptr.3d 293.)

(*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231.)

Here, when construing Plaintiff's claim for unjust enrichment as a claim for restitution, Plaintiff fails to state facts sufficient to constitute

a cause of action for restitution.

As a preliminary matter, Plaintiff fails to sufficiently allege a claim for breach of contract. Further, Plaintiff fails to allege that the express contract is void or was rescinded.

Defendant's demurrer to the second cause of action for unjust enrichment is SUSTAINED with LEAVE TO AMEND GRANTED so Plaintiff can attempt to plead restitution based on unjust enrichment, by alleging in that cause of action that the express contract is void or was rescinded.

"[A] party to an express contract can assert a claim for restitution based on unjust enrichment by "alleg[ing in that cause of action] that the express contract is void or was rescinded."" (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231 citing Lance Camper Manufacturing Corp. v. Republic Indemnity Co. (1996) 44 Cal.App.4th 194, 203.)